

Approved as to
form only:

[Signature]

Date: 9/5/18

AMENDMENT NO. FOUR
TO CONTRACT NO 40118968/CITY CONTRACT NO. 5930 BETWEEN THE CITY OF
CHEYENNE AND KONE, INC.

This agreement amends the KONE Contract No. 40118968/City Contract No. 5930, dated December 1, 2012, between the City of Cheyenne, Wyoming and KONE Inc., in the following manner:

OBJECT: To standardize pricing for like units. This change will decrease the amount of the contract by a total of \$529.09, monthly.

OBJECT: Add 1 Schindler 3300 Traction elevator at the Botanic Gardens, 710 S. Lions Park Dr @420.00 per month effective June 1st, 2018. Add 1 Otis Hydro-Fit Hydraulic elevator at the Transfer Station, 220 N. College Dr. @195.00 per month effective May 1st, 2018.

All other terms and conditions of the existing agreement shall remain in full force and effect.

This agreement will become effective upon execution by the parties following Governing Body approval.

Dated this _____ day of _____, 2018.

CITY OF CHEYENNE, WYOMING

Marian J. Orr, Mayor

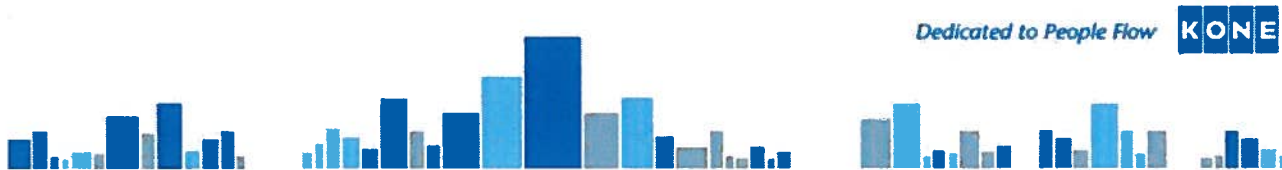
(SEAL)

ATTEST:

Carol Intlekofer, City Clerk

KONE IC. _____

Randy Howard, Account Executive



AMENDMENT
TO CONTRACT NO. 40118968

OBJECT: Add two units to master agreement as follows

- 1- Schindler 3300 Traction elevator at the Botanic Gardens 710 S. Lions Park Dr. Cheyenne, Wyoming @ \$ 420.00 per month effective June 1st 2018**
- 2- Otis Hydro-Fit Hydraulic elevator at the Transfer Station 220 N. College st Cheyenne, Wy. @ 195.00 per month effective May 1st 2018**

ALL OTHER TERMS OF THE EXISTING AGREEMENT SHALL REMAIN THE SAME.

Accepted on behalf of
City Of Cheyenne

Respectfully submitted,
KONE Inc.

Randy A. Howard

Signature

Randy Howard, Account Executive

Printed Name & Title

KONE Approval

____/____/____
Date

____/____/____
Date

AMENDMENT
TO CONTRACT NO. 40118968

OBJECT: Standardize pricing for like units

EFFECTIVE DATE: 12/01/2017

Equipment	Equip. Type	Manufacturer	Equipment ID	Site Name	Street	Street 2	Start Date	Old Price	New Price
20003937	TP	MONTGOMERY	#1 PASSENGER ELEVATOR	CITY OF CHEYENNE	2101 ONEIL AVENUE	MUNICIPAL BLDG	7/3/2013	685.14	\$525.00
20003941	TP	MONTGOMERY	#2 PASSENGER ELEVATOR	CITY OF CHEYENNE	2101 ONEIL AVENUE	MUNICIPAL BLDG	7/3/2013	685.14	\$525.00
20207707	HP	DOVER	PASSENGER ELEVATOR	CITY OF CHEYENNE CIVIC CENTER	510 WEST 20TH		7/3/2013	89.77	\$195.00
20234070	HP	OTIS	NORTHEAST PASS ELEV	CITY OF CHEYENNE JACK SPIKER	322 WEST LINCOLN WAY	JACK SPIKER PARKING GARAGE	7/3/2013	277.02	\$195.00
20234071	HP	OTIS	SOUTHEAST PASS ELEV	CITY OF CHEYENNE JACK SPIKER	322 WEST LINCOLN WAY	JACK SPIKER PARKING GARAGE	7/3/2013	277.02	\$195.00
20304919	HP	LULA	PASSENGER ELEVATOR	CITY OF CHEYENNE ICE & EVENTS	1530 W LINCOLN WAY	ICE & EVENTS CENTER	7/3/2013	166.08	\$195.00
20003945	HP	SCHINDLER	PASSENGER ELEVATOR	GEORGE COX PARKING	400 WEST 20TH ST		7/3/2013	319.56	\$195.00
20376573	HP	SCHINDLER	#1 PASSENGER ELEVATOR	FIRE TRAINING FACILITY	7222 COMMERCE CIR		9/16/2014	214.62	\$195.00
42837669	HP	SCHINDLER	MUSEUM PASS ELEV	CHEYENNE DEPOT PLAZA	121 WEST 15TH ST		8/30/2016	210.12	\$195.00
20378682	HP	SCHINDLER	PASSENGER ELEVATOR	CHEYENNE DEPOT PLAZA	121 WEST 15TH ST		9/16/2014	214.62	\$195.00
20379104	EP	KONE	#1 4000 LB PASSENGER	CHEYENNE PUBLIC SAFETY CENTER	415 WEST 18TH ST		3/16/2018	231.04	231.04
20379105	EP	KONE	#2 3500 LB PASSENGER	CHEYENNE PUBLIC SAFETY CENTER	415 WEST 18TH ST		3/16/2018	231.04	231.04
								3601.17	\$3,072.08

ALL OTHER TERMS OF THE EXISTING AGREEMENT SHALL REMAIN THE SAME.

Accepted on behalf of
City Of Cheyenne

Respectfully submitted,
KONE Inc.

Randy A. Howard

Signature

Randy Howard, Account Executive

Printed Name & Title

KONE Approval

_____/_____/_____
Date

_____/_____/_____
Date

Approved as to
form only:

ECR



CITY CONTRACT #5930

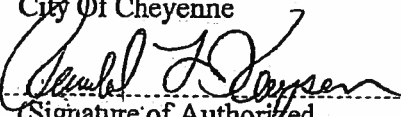
Date: 11-7-12

Purchaser ("Purchaser"):
City Of Cheyenne 2101 O'neil
Avenue Room 311
Cheyenne, Wyoming 82001

Service Location ("Premises"):
 City of Cheyenne
 Various Locations
 Cheyenne, Wyoming 82001

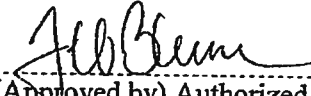
KONE Inc. ("KONE")
 Denver
 3 Inverness Drive East
 Englewood, CO 80112

KONE Care™ Plus Agreement for Vertical Transportation
("Agreement")

City Of Cheyenne

 (Signature of Authorized Representative)
 Richard L. Kaysen, Mayor
 (Print Name)

 Carol Intlekofer, City Clerk

ATTEST
 SEAL

Respectfully submitted,
 Randy Howard
 KONE Inc.

 (Approved by) Authorized Representative 3-25-13
 KONE 40118968

EQUIPMENT DESCRIPTION ("Equipment")

Manufacturer	Hydraulic		MRL		Geared Traction		Gearless Traction		Escalator	Powerwalk	Other
	Passenger	Freight	Passenger	Freight	Passenger	Freight	Passenger	Freight			
KONE	4	1			3						

TENDER DATE: 05/02/2012

EFFECTIVE DATE: 12/01/2012

City Of Cheyenne
 Rev. 8 2/1/11

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CONFIDENTIAL
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PRICE

\$2,418.18 per month payable by Purchaser quarterly in advance (\$7,254.54 per quarterly installment). If Purchaser does not sign this Agreement within 90 days after the tender date stated above, KONE reserves the right to submit a revised price.

SCOPE OF SERVICES

KONE will perform maintenance visits to examine, maintain, adjust, and lubricate the components listed below. In addition, unless specifically excluded below, KONE will repair or replace the components listed below if the repair or replacement is necessitated by normal wear and tear. Unless specifically included elsewhere in this Agreement or unless Purchaser has separately contracted with KONE for the work, all other work related to the equipment is Purchaser's responsibility.

TRACTION ELEVATORS

RELAY LOGIC CONTROL SYSTEM

All control system components.

MICROPROCESSOR CONTROL SYSTEM

All control system components. System performance examinations will be conducted to ensure that dispatching and motion control systems are operating properly.

GEARED/GEARLESS MACHINES

All geared and gearless machine components.

WIRING

All elevator control wiring and all power wiring from the elevator equipment input terminals to the motor.

CAR EQUIPMENT

All elevator control system components on the car.

HOISTWAY AND PIT EQUIPMENT

All elevator control equipment, car and counterweight buffers, overspeed governors, governor tension sheave assemblies, and car and counterweight safeties.

RAILS AND GUIDES

Guide rails, guide shoe gibs, and rollers.

HOIST ROPES

Hoist ropes will be lubricated and adjusted for equalized tension.

DOOR EQUIPMENT

Automatic door operators, hoistway and car door hangers, hoistway and car door contacts, door protective devices, hoistway door interlocks, door gibs, and auxiliary door closing devices.

MANUAL FREIGHT DOOR EQUIPMENT

Switches, retiring cams, interlocks, guide shoes, sheaves, rollers, chains, sprockets, tensioning devices, and counter-balancing equipment.

POWER FREIGHT DOOR



EQUIPMENT

Controller, relays, contactors, rectifiers, timers, resistors, solid state components, door motors, retiring cams, interlocks, switches, guide shoes, sheaves, rollers, chains, sprockets, and tensioning devices.

SIGNALS AND ACCESSORIES

Car operating panels, hall push button stations, hall lanterns, emergency lighting, car and hall position indicators, car operating panels, fireman's service equipment and all other signals, and accessory facilities furnished and installed as an integral part of the elevator equipment. Re-lamping of signal fixtures is included only during KONE's maintenance visits. **Service requests for re-lamping of signal fixtures will be billed separately at the rate of:**
See attachment A_.

HOURS OF SERVICE

All services described above will be performed during the regular working hours of the regular working days of the elevator or escalator trade in the location where the services are performed, unless otherwise specified in the Agreement.

SERVICE REQUESTS **(CALLBACKS)**

In addition to the work described in the Scope of Services section, this Agreement covers requests for service during the regular working hours of the regular working days of the elevator trade. Service requests are defined as services

that require immediate attention and that are within the scope of services and not excluded from the scope of services as provided below. Service requests outside the scope of services will be billed separately at the rates set out in **Attachment A____**, plus material prices. Service requests that require more than one technician or more than two hours to complete will be treated as a repair and scheduled in accordance with the Hours of Service section above. Purchaser agrees that KONE may perform service requests made by any person that KONE believes is authorized by Purchaser to make such requests.

If Purchaser requests service on overtime, Purchaser will be charged only for the difference between KONE's hourly billing rate and KONE's hourly overtime billing rate for each overtime hour.

TESTS

KONE will perform the following tests on the Equipment. KONE is not liable for any property damage or personal injury, including death, resulting from any test, unless it is determined that Kone is negligent.

TRACTION ELEVATOR

An annual no load test as required by applicable code.

EXCLUSIONS

The following are excluded from the scope of services.

GENERAL

KONE is not obligated to: perform safety tests other than those specified herein; perform any work required by new or retroactive code changes; perform tests required or correct outstanding violations or deficiencies identified prior to the effective date; make replacements or repairs necessitated by fluctuations in the building power systems, adverse machine room or environmental conditions (including without limitation temperature variations below 50 degrees or above 90 degrees Fahrenheit) or humidity greater than 95% non-condensing water damage, prior water exposure, rust, fire, explosion, acts of God, misuse, vandalism, theft, war or civil strife, terrorism, acts or mandates of government, labor disputes, strikes, lockouts, or tampering with the equipment by any person other than a KONE representative, negligence or acts or omissions of the Purchaser or any third party, or any other cause beyond KONE's direct control.

KONE agrees to maintain the existing performance as designed and installed. KONE is not required under this Agreement to make changes in operation and/or control, subsequent to the date of this Agreement.

OBSOLESCENCE

A component may become obsolete during the term of this Agreement.

Obsolete components are not covered under this Agreement. KONE will provide Purchaser with a separate quotation for the price to replace obsolete components. Equipment modifications necessary to accommodate replacement of obsolete components will also be at the Purchaser's expense.

Components include without limitation any part, component, assembly, product, or firmware or software module. A component is obsolete when it can no longer be economically produced due to the cessation of consistent sources for materials, a loss or termination of a manufacturing process occurs, product reliability analysis shows that it is not economically feasible to continue to produce the component, escalation of component costs beyond acceptable industry expectations drive alternative equipment upgrades, the support of product safety programs or conformance to codes or standards mandates that use of a component be discontinued in its entirety, or the OEM designates the component as obsolete. No exception to the above will be made for a component designated as obsolete because it can be custom made or acquired at any price. KONE will not be required to furnish reconditioned or used components. The component that replaces the obsolete components is covered under this Agreement.

ELEVATOR

Refinishing, repairing, replacing, or cleaning of the: car enclosure; gates or door panels; door pull straps; hoistway



enclosure; rail alignment; hoistway doors; door frames; sills; hoistway gates; flooring; power feeders, switches, and their wiring and fusing; car light diffusers; ceiling assemblies and attachments; smoke or heat sensors; fans; fireman's phone devices; intercoms; telephones or communication devices; phone lines; music systems; media displays; card-readers or other security systems; computer monitoring systems; light tubes and bulbs; pit pumps; emergency power generators; hydraulic cylinder; unexposed piping; or disposal or clean-up of waste oil or contamination caused by leaks in the hydraulic cylinder or unexposed piping. KONE is not be obligated to perform or keep records of firefighter's service testing, unless specifically included in this Agreement.

REMOTE MONITORING

If the Equipment is equipped with remote monitoring capabilities, Purchaser gives KONE the right to utilize this functionality and the phone line to the Equipment to collect data related to the use and operation of the Equipment.

SAFETY

Purchaser will provide a safe workplace for KONE personnel and safe access to the equipment, property and machine room areas and keep all machine rooms and pit areas free from water, stored materials and debris; remove and dispose of any hazardous materials, water or waste according to applicable laws and

regulations; post any and all instructions and warnings related to the use of the equipment. Purchaser will be solely responsible for proper use, for supervising the use of the equipment, and for taking such steps including but not limited to providing attendant personnel, warning signs and other controls necessary to ensure the safety of the user or safe operation of the equipment.

Notwithstanding anything to the contrary contained in this Agreement, if the equipment presents a safety hazard to the riding public or KONE's technicians (including but not limited to Purchaser's act of creating or allowing unsafe practices or conditions or Purchaser's failure to authorize necessary repairs or upgrades), KONE may immediately terminate this Agreement in its entirety upon written notice. To the extent that KONE provides Purchaser with a written account, report, information, or other statement identifying a safety issue with the equipment that is the subject of the Agreement or otherwise makes any recommendation or proposal to make a safety improvement or to address a safety issue related to such equipment, and Purchaser does not immediately approve KONE's proposal or recommendation, **Kone may then cancel with a 30 day notice.**

NOTICE OF MALFUNCTION OR INJURY

As to any elevator or escalator equipment that is the subject of the Agreement, Purchaser will: (i) immediately shut down any such equipment that presents a

potential safety hazard; and (ii) provide prompt verbal notice to KONE's Service Center of such hazard. Purchaser will immediately notify KONE's Service Center of any injury or accident in or about such equipment, followed by prompt written notice of such injury or accident.

THIRD PARTY SERVICES

All services within the scope of this Agreement must be performed by KONE or its subcontractors, if any. If Purchaser causes or permits a third party to perform the same or substantially the same services required by this Agreement, Purchaser waives all claims against KONE arising from or related to a third party's performance of such services.

If a third party works on the equipment during the term of this Agreement, KONE reserves the right to inspect the equipment and may determine that re-work, different or additional work is required.

NON-KONE EQUIPMENT

If the equipment covered under this Agreement was not manufactured by KONE (or a company acquired by KONE), Purchaser will: (i) provide KONE with a complete set of as-built wiring diagrams and (ii) Purchaser will procure and pay for replacement parts or proprietary diagnostic devices from the OEM, if requested by KONE. KONE will reimburse Purchaser for the actual cost paid by Purchaser for OEM parts acquired at KONE's request. KONE is not responsible for any delays, damages, cost, or claims arising from or in connection

with Purchaser's failure to provide OEM parts or proprietary diagnostic devices in a timely manner. Purchaser authorizes KONE to produce single copies of the EPROM and/or ROM chips for each unit for the sole purpose of an archive backup of the embedded software to allow for replacement of a defective or damaged chip. These will be stored on the building premises and the Purchaser retains possession.

TERM AND TERMINATION

This Agreement will commence on the effective date and continue for an initial period of Five (5) years. This Agreement will thereafter automatically renew for successive terms of One (1) year. Either party may terminate this Agreement at the end of the initial Five (5) year term or at the end of any subsequent One (1) year term by giving the other party no less than ninety (90) days nor more than one hundred twenty (120) days written notice, via certified mail, prior to the expiration date of the then current term of the Agreement.

If a party materially breaches the Agreement, the other party may provide written notice of the breach and a reasonable time under the circumstances to cure the breach, but in no event less than a thirty (30) days cure period. If the breaching party fails to cure the breach within the specified time period, the non-breaching party may terminate the Agreement upon fifteen (15) days written notice to the other party, with the exception those situations where failure to



make a repair would constitute a safety hazard. If KONE notifies Purchaser of a material breach pursuant to this paragraph, KONE may temporarily suspend services under this Agreement during the specified cure period.

ASSIGNMENT

Either party may assign the Agreement to a third party upon thirty (30) days prior written notice to the other party subject to the terms of this provision. If Purchaser transfers ownership of the premises on which such equipment is located to a third party, Purchaser will promptly provide KONE with new owner's contact information and take all such actions as are necessary to assign the Agreement to the third party. Purchaser will promptly provide KONE with a copy of such assignment.

MODIFICATIONS AND PRICE ADJUSTMENTS

Any changes, modifications, revisions, amendments, or price adjustments to this Agreement must be mutually agreed upon by the parties to this Agreement. All such changes, modifications, revisions, amendments, or price adjustments shall be incorporated by written instrument, executed and signed by all parties to this Agreement. KONE must provide the Purchaser sixty (60) days in advance of the effective date of all such changes

modifications, revisions or price adjustments.

PAYMENT TERMS

Payment is due net forty-five (45) days from the date of receipt of the invoice. A charge of the greater of: (i) one and one half percent (1½%); or (ii) the maximum rate permitted by applicable law, will be applied to the unpaid balance.

SUSPENSION OF SERVICE

If Purchaser fails to pay any invoice within the specified payment terms or if Purchaser breaches any material provision of the Agreement, KONE may stop work or suspend its services until all invoices are current or Purchaser cures the breach.

Any requests for service during the period of suspension of service or repairs necessitated by the lack of maintenance service will be invoiced by KONE and paid separately by Purchaser.

If Purchaser fails to make timely payment, any indemnity provided by KONE under the Agreement is null and void as to any damages that arise during the period of non-payment.

Purchaser waives all claims against KONE arising from or related to suspension of service pursuant to this provision.

TAXES

Purchaser is responsible for the payment of all federal, state, or local taxes applicable to the services or materials provided under the Agreement.

LIMITATION OF LIABILITY

KONE agrees to indemnify, hold harmless and defend the City and the Board of Public Utilities from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) KONE's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by KONE, or its employees or subcontractors in the performance of this Agreement.

In no event will either party be liable to the other party for indirect, incidental, consequential, special, exemplary, or punitive damages of any kind or nature arising from or related to performance of the Agreement, including without limitation loss of profits, loss or inaccuracy of data, or loss of use damages, even if the party has been

advised of the possibility of such damages and even if under applicable law such damages would not be considered for indirect, incidental, punitive, special, or consequential damages. Each party hereby waives its rights to such damages to the fullest extent permitted by applicable law.

GOVERNMENTAL IMMUNITY

The Board of Public Utilities and the City and their officials and employees do not waive governmental immunity by entering into this Agreement and specifically retain all immunities and defenses available to them as Governmental Entities pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable laws, except to the extent necessary solely for the enforcement of the terms and conditions of this Agreement as between the parties. Further, the Board of Public Utilities and the City fully retain all immunities and defenses provided by law with regard to any action, whether in tort, contract or any other theory of law, based on this Agreement. Designation of venue, choice of law and similar provisions should not be construed as a waiver of governmental immunity.

INSURANCE REQUIREMENTS

KONE shall provide the Purchaser with proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Business Automobile Insurance

Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000 per accident for the entire term of the Agreement.

Workers' Compensation

Workers' Compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. KONE shall provide the Purchaser with proof of workers' compensation or employer's liability insurance coverage.

(1) KONE shall, concurrently with the execution of this Agreement, provide the Purchaser with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time KONE begins the provision of services under this Agreement; and

(2) In the event KONE'S services extend into a future policy period, KONE shall, prior to the policy expiration date, provide the Purchaser with a new certificate of insurance demonstrating that such

coverage is or shall be in effect during all periods of time that KONE will provide services under this Agreement; and

~~(3) KONE shall maintain said "claims made" coverage for a period of five (5) years following the last date that KONE has provided services under this Agreement; and~~

(4) In the event KONE or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs (1), (2), or (3) of this paragraph, KONE shall provide to the Purchaser advance written notification of the termination of said coverage and shall provide the Purchaser with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that KONE has provided services under this Agreement.

Additional Insurance Information

KONE shall name the Board of Public Utilities and the City of Cheyenne as an ~~Additional Insured~~ on Kone's OCPL Insurance Policy, with the exception of worker's compensation and professional liability insurance, and shall provide the Purchaser with a copy of the endorsements.

KONE shall provide the Purchaser with certificates of insurance acknowledging the above-stated coverages prior to

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beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon KONE to immediately notify in writing the Purchaser of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

In addition, KONE shall provide the Purchaser with copies of insurance policies and/or policy endorsements listing the Board of Public Utilities and the City of Cheyenne as an ~~additional~~ insured.* The Purchaser's failure to request or review such policies, endorsements, or certificates shall not affect the Purchaser's rights or KONE's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

COMPLIANCE WITH LAWS

KONE shall comply with all applicable federal, state and local laws, rules and regulations in the performance of this contract. The identified Laws or Regulations are included in this Agreement as mandated by statute or for the convenience of KONE. KONE's attention is directed to the fact that all applicable Federal and State laws, municipal ordinances, and the rules and regulations of all authorities having jurisdiction over design and construction of the project shall apply to the Agreement throughout, and they will be deemed to be included in the Agreement the same as though herein written out in full. Other Laws and Regulations apply which are not included herein, and are within KONE's duty and responsibility for compliance therewith.

NONDISCRIMINATION

KONE shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. §27-9-105 et seq.), the Americans With Disabilities Act (ADA), 42 U.S.C. § 12101 et seq., and the Age Discrimination Act of 1975 and/or any properly promulgated rules and regulations thereto and KONE assures that no person shall be excluded from participation in, denied the benefits of, or otherwise discriminated against in connection with the award and performance of this Agreement on the grounds of age, sex, race, creed, color, national origin, ancestry, religion, pregnancy or qualifying disability. KONE further assures that it will include the language of this paragraph in all

*on an Owners
and Contractor's
Protective Liability
Policy

agreements associated or connected in any way with this Agreement and the work thereunder. If KONE, its employees or subcontractors are found in violation of these requirements, this Agreement may be terminated. KONE shall be responsible for all such non-compliance and shall defend, hold harmless and indemnify the Purchaser therefrom.

ALCOHOL AND CONTROLLED SUBSTANCE POLICY

In compliance with the Drug-Free Workplace Act of November 1988, the Purchaser has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by Purchaser employees. All parties under contract with the Purchaser, including KONE and its employees and subcontractors, are required to comply with the provisions of the Purchaser's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on Purchaser property or other sites occupied by KONE while performing duties and responsibilities of this contract. It is the responsibility of KONE to familiarize itself with the requirements of this policy and to inform all its employees and subcontractors of those requirements and to insure their compliance therewith. If KONE, its employees or subcontractors are found to be in violation of this policy, this contract may be terminated.

INDEPENDENT CONTRACTOR

At all times during the term of this Agreement, KONE shall be considered an independent contractor. Neither KONE

nor any one employed by it shall represent, act, purport to act or be deemed to be the agent, representative, employee or servant of the Purchaser.

FORCE MAJEURE

A party is not liable for failure to perform its obligations under the Agreement if such failure is beyond its control and without its fault and results from Acts of God (including without limitation fire, flood, earthquake, storm, hurricane, or other natural disaster), war, invasion, act of foreign enemies, hostilities (regardless of whether or not war is declared), civil war, civil strife, rebellion, revolution, insurrection, military or usurped power or confiscation, terrorist activities, nationalization, government sanction, blockage, embargo, labor dispute, strike, or lockout, epidemic or pandemic, or interruption or failure of electricity or telephone service. The non-performing party must promptly notify the other party in writing of the force majeure event and resume performance immediately upon cessation of the event.

GOVERNING LAW AND VENUE

The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be

the First Judicial District, Laramie County, Wyoming.

PROPERTY RIGHTS

KONE will provide Purchaser with any of its information or materials that it provides generally to all its customers in the ordinary course of its business. Any tools, devices, or other equipment that KONE uses to perform its services remains its sole property. If KONE's contract terminates or expires for any reason, Purchaser will give KONE access to the premises to remove such equipment at KONE's expense.

KONE retains all rights, title, and interest, including all intellectual property rights, in and to the written materials it provides to Purchaser or uses to perform its services, including without limitation shop drawings, technical documentation, and user manuals, and to any software provided with the equipment. Purchaser will not use such software except in connection with the use and operation of the equipment. Purchaser will not reverse engineer or otherwise attempt to obtain the source code of any software in object code form.

MISCELLANEOUS

The Agreement, including any attachments, supersedes all prior written or oral negotiations, commitments, agreements, and understandings between the parties relating to the subject thereof, and constitutes the entire agreement

between the parties with respect to the subject matter hereof. The Agreement is not effective until signed by KONE's authorized representative or until KONE commences work under the Agreement. Notwithstanding anything to the contrary in this Agreement, if Purchaser causes or permits KONE to commence performance of services, Purchaser accepts the terms and conditions of this Agreement. The Agreement may not be modified, amended, canceled, or altered by custom and usage of trade or course of dealing. Any section headings are for convenience only and will not in any way limit the scope or affect the interpretation of any provision of the Agreement. In the event any part of the Agreement is determined to be invalid or non-enforceable, the remaining part or provisions will continue in full force and effect. Failure or delay by a party to exercise any right, remedy, power, or privilege accorded by the Agreement does not constitute a waiver of such right, remedy, power, or privilege. A waiver is effective only if in writing and signed by the waiving party. A written waiver of default will not operate as a waiver of any other default or of the same default in the future. The terms and conditions of the Agreement that by their sense and context are intended to survive expiration or termination of the Agreement will so survive, including without limitation the making of all payments hereunder.



KRMS Voice Monitoring Service Option

KONE will provide its KRMS voice monitoring service. Purchaser will provide an analog phone line to the elevator machine room to be terminated on the appropriate phone jacks. If the phone line is an extension off an existing phone system, Purchaser will provide a backup power source. If applicable, the extension must be direct inward dial (DID). All phones and associated equipment must comply with ASME A17.1, local codes, and applicable law. Purchaser will provide KONE with the elevator phone number(s) or extension(s) so that these may be programmed to call the KONE Service Center. Purchaser will complete the below information and update KONE with the information immediately in writing if the information changes. Purchaser's named representatives must be available 24/7 for contact by KONE. If the KONE Service Center receives a call from an elevator, KONE will contact Purchaser's representatives in the order listed below. KONE will contact the local emergency authorities only if there is an emergency or when KONE cannot reach Purchaser's representatives. Upon termination of the Agreement, Purchaser must immediately reprogrammed all elevator phones to dial a number other than a KONE phone number, and KONE will block the elevator phone numbers from contracting the KONE Service Center.

Purchaser will pay KONE a one-time activation fee of \$ 0.00. Purchaser will also pay a service fee of \$120.00 per quarterly installment.

Elevator Description	Equipment #	Elevator Phone # and Extension for Caller ID
1.		
2.		



First Point of Contact (Required)	
Name:	Title:
Phone #:	Cell Phone #:
Second Point of Contact (Required)	
Name:	Title:
Phone #:	Cell Phone #:
Third Point of Contact (Optional)	
Name:	Title:
Phone #:	Cell Phone #:
Local Emergency Authorities (Required)	
Fire Department Phone #:	Police Department Phone #:

If Purchaser wishes to include KRMS voice monitoring services in the Agreement, Purchaser will accept by initialing below.

Accepted

CUSTOMER INFORMATION

Who is the Agreement with?		
Legal Name of the Company:		
Address:		
City:	State:	Zip:
Contact Name:	Title:	
Phone:	Fax:	
Is the Owner tax exempt? ☐ Yes (If Yes, provide the Tax Exemption Certificate.) ☐ No		
Federal Tax ID #:		

Where should the invoices be sent?		
Legal Name of the Company:		
Attention:		
Address:		
City:	State:	Zip:
Contact Name:	Title:	
Phone:	Fax:	
Federal Tax ID #:	Email:	

Who will be responsible for paying the invoices?		
Legal Name of the Company:		
Attention:		
Address:		
City:	State:	Zip:
Contact Name:	Title:	
Phone:	Fax:	
Federal Tax ID #:	Email:	

Attachment A

The annual price escalation shall be limited to no more than a 4% increase.



Billing Rates shall be at a 30% discount of our current list rates. The 2012 rates are listed below



BILLING RATES EFFECTIVE JANUARY 2012

Straight Time 1.7 Double Time

Cost Center 1011020 (Callouts)

Mechanic 100%	\$335.64	\$570.74	\$656.09
Helper 100%	\$281.00	\$473.15	\$541.91
Team Rate 100%	\$618.64	\$1,044.10	\$1,198.00
Foreman/Adj 100%	\$366.62	\$625.74	\$725.61

Mechanic OT portion		\$235.15	\$328.08
Helper OT portion		\$195.37	\$270.98
Foreman/Adj OT portion		\$259.45	\$382.01

Cost Center 1311030 (Repairs)

Mechanic 100%	\$345.64	\$590.55	\$679.67
Helper 100%	\$291.10	\$489.27	\$560.72
Team Rate 100%	\$636.74	\$1,079.82	\$1,240.41
Foreman/Adj 100%	\$378.15	\$652.07	\$752.15

Mechanic OT portion		\$243.34	\$339.86
Helper OT portion		\$201.62	\$280.39
Foreman/Adj OT portion		\$268.84	\$376.08